

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.: 2020 CA 001021

RUSTIN R. HOWARD

Division: E

Defendant

and

THOMAS J. JOHNSON,

Defendant

**PLAINTIFF MOSZKOWSKI'S MOTION TO COMPEL**

Plaintiff MARC M. MOSZKOWSKI, Pro Se, thanks the Court for the opportunity to amend his complaint. He endeavors to file an amended complaint within the timeframe kindly granted by the Court.

MOSZKOWSKI notes that one of the Defendants' principal objections to his original complaint is that the entities which the Defendants claim to represent should be substituted for the Defendants<sup>1</sup>.

Throughout previous pleadings since 2018, both in U.S. District Court and U.S. Court of Appeals, MOSZKOWSKI has repeatedly demanded from the

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<sup>1</sup> Reportedly entities DeepGulf, Inc. and Toke Oil and Gas S.A.

Defendants through the entities they claim to represent that they provide to him essential legal information regarding said entities. His demands have been consistently ignored.

In order for MOSZKOWSKI to properly assess his legal options with regard to the amendment of his complaint, MOSZKOWSKI needs to be apprised of the following information for entities DeepGulf, Inc. of Pensacola, Florida (Entity A), and Toke Oil and Gas S.A., a legal person declared by the Defendants to be a valid and current corporation of the Democratic Republic of East Timor (Entity B):

1. Valid current up-to-date Certificate of Incorporation for Entity B;
2. Valid up-to-date government issued Certificate testifying of (a) the current good standing of Entity B according to the laws and statutes of the Democratic Republic of East Timor, and (b) the fulfillment of all the legal obligations mandated by the government of said jurisdiction;
3. Full legal domicile address of Entity B;
4. Full records of shareholders with full electronic addresses for each entity;
5. Full current compositions of the Boards of Directors of each entity.

MOSZKOWSKI is DeepGulf, Inc.'s largest shareholder, with close to half the stock<sup>2</sup>, and, according to the last available document prepared by Defendant RUSTIN R. HOWARD in 2013, he was then one of the only two Directors of then entity Toke Oil and Gas S.A.. As such, he is fully entitled to the information which he is seeking but has been consistently denied to him.

WHEREFORE, Pro-Se Plaintiff MOSZKOWSKI respectfully moves this Honorable Court to deservedly compel the Defendants to finally supply to him the essential legal information he has demanded for several years, although to no avail, which information the Defendants are the only natural persons to control. Short of obtaining said information he will be prevented from making a rightful and comprehensive assessment of his options with regard to his amended complaint.

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<sup>2</sup> Unfortunately, the conflicting information provided by Defendant RUSTIN R. HOWARD for the legal persons he claims to represent does not allow a more accurate estimate of MOSZKOWSKI's holding.

Signed, this 14<sup>th</sup> day of March, 2022.

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.

### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 14<sup>th</sup> day of March, 2022, a copy of this motion has been provided to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.